

24STCV18611 24STCV18611

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 24STCV18611 Hearing Date: June 24, 2026 Dept: 406

MARIO HERNANDEZ,

Plaintiff,

v.

HUONG HAKHAMIMI,

Defendant.

Case No.: 24STCV18611

Hearing Date: June 24, 2026

[TENTATIVE]

order RE:

defendant's motion to compel responses

to discovery (CRS# 2134, 9356)

BACKGROUND

On July 26, 2024, Plaintiff Mario

Hernandez filed this action against Defendant Huong Hakhamimi for motor vehicle

negligence.

On May 28, 2026, Defendant filed the

instant two motions to compel Plaintiff's responses to supplemental

interrogatories and requests for production. Plaintiff filed oppositions on

June 8, 2025. Defendant filed replies on June 16, 2026.

LEGAL STANDARD

Discovery responses are due 30 days after

service of the requests, unless the parties stipulate or the court orders

otherwise. (Code Civ. Proc., §§ 2030.260(a), 2031.260(a), 2033.250(a).) If a

responding party fails to respond in time, the propounding party may move for

an order compelling the responses or deeming matters admitted. (Id., §§

2030.290(b), 2031.300(b), 2033.280(b).) The responding party also waives all

objections and the right to produce writings under section 2030.230. (Id.,

§§ 2030.290(a), 2031.300(a), 2033.280(a).)

DISCUSSION

Defendant served the subject

requests on January 11, 2026, meaning responses were due by February 12, 2026.

(Bakshandeh Decl. ¶ 2.) Plaintiff did not serve responses by February 12, 2026.

(Id., ¶¶ 3-4.) Plaintiff served responses on May 28, 2026, upon notice

of the instant motions. (Le Decl. ¶ 6.) Plaintiff claims that the delay was due

to a calendaring error caused by Defendant's failure to serve Plaintiff's

counsel's electronic service address. (Id., ¶¶ 3-4.)

The motion is moot as Plaintiff has

served responses to the subject discovery. Sanctions are unwarranted because

the email service issue was addressed in the prior motion to compel physical

examination, and Plaintiff has already been sanctioned for it. The Court finds

that it would be unjust to sanction Plaintiff again for the same error stemming

from the same email.

CONCLUSION

Defendant's motion to compel is

DENIED. Sanctions are denied.